



HIRALL SOLUTIONS

Nairobi, Kenya // hirallsolutionske@gmail.com

VERSUS

FAMOUSGATE HOTELS

Bomet, Kenya // famousgatesbmt@gmail.com

1. THE PARTIES

This Agreement is made as of [] Day of [], 20[] between:

1. **HIRALL SOLUTIONS**, of Nairobi, Kenya (The Developer/Vendor).
2. **FAMOUSGATE HOTELS**, of Bomet, Kenya (The Client/Purchaser).

2. SYSTEM DETAILS

System Name: _____

Version Number: _____

Deployment Type: _____

Delivery Date: _____

Admin Access To: _____

Modules Included:

☐ Reservations ☐ Point of Sale ☐ Inventory ☐ Staff Management ☐ Billing ☐ Kitchen Controller

3. COMMERCIAL TERMS

Total Contract Value (KES): _____

Amount Paid (KES): _____

Outstanding Balance: _____

Final Payment Due: _____

Post-Handover SLA Fee: _____

4. ASSETS HANDED OVER

☒ Source Code (Limited Escrow)

☒ Compiled Binary Assets

- ☒ Database Schema Documentation
- ☒ Super-Admin Credentials
- ☒ Server Control Panel Access
- ☒ Domain/URL DNS Control
- ☒ Technical Operational Manual
- ☒ Staff Training Certificates

5. ACCEPTANCE OF SYSTEM

The Client confirms that it has inspected and tested the system. By signing this agreement, the Client accepts the system as delivered, except for snags listed in Section 6.

6. OUTSTANDING ITEMS (SNAG LIST)

NO	ISSUE DESCRIPTION	PARTY	STATUS

7. OWNERSHIP & INTELLECTUAL PROPERTY

Option A - Full Assignment [] | Option B - License Model []

Provider retains ownership of all pre-existing libraries and reusable modules. Full IP transfer is subject to full payment settlement.

8. CONFIDENTIALITY

Parties shall keep all records, credentials, and business data confidential. Client must change all administrative passwords immediately upon handover.

9. DATA PROTECTION

The Client is the Data Controller. HIRALL acts as a Support Provider/Processor. Data must be handled in compliance with Kenyan Privacy Laws.

10. WARRANTIES

System is delivered "As-Is" with a warranty for substantial conformance. Developer not liable for internet outages, misuse, or third-party breaches.

11. MAINTENANCE & SUPPORT

Free Support Period (Days): _____

Support Start Date: _____

Includes: Critical Bug Fixes, Remote Support. Excludes: New Features, Hardware, Additional Branches.

**12. TRAINING RESPONSIBILITY**

Client confirms that staff has been trained. Ongoing operational responsibility and data entry accuracy rest solely with the Client.

13. HOSTING & CONTINUITY

CRITICAL NOTE: System is hosted on HIRALL'S domain infrastructure unless otherwise agreed in writing.

Backup Frequency: _____

Recovery Contact Name: _____

14. THIRD-PARTY FEES

SMS Gateways, Domain Renewals, and Server Subscriptions shall be borne by: ☐ HIRALL ☐ CLIENT ☐ SHARED

15. INDEMNITY

Each party is responsible for losses arising from its own breach of protocol, negligence, or unauthorized data access.

16. DISPUTE RESOLUTION

Governed by the Laws of Kenya. Amicable negotiation period: 30 Days. Jurisdiction: Courts of Nairobi/Bomet.

17. ENTIRE AGREEMENT

This document constitutes the full handover record and supersedes all previous informal discussions regarding acceptance.

18. SIGNATURES**FOR: HIRALL SOLUTIONS**

NAME: _____

SIGNATURE: _____

DATE: _____

FOR: FAMOUSGATE HOTELS

NAME: _____

SIGNATURE: _____

DATE: _____

19. WITNESSES

WITNESS 1: _____ ID: _____

WITNESS 2: _____ ID: _____